OCHMO Office of Research Assurance

Human Subjects Research Standard Operating Procedures(SOP)

SOP- 700: ClinicalTrials.gov

Number	Effective Date	Version Number	Previous Versions
700	4/1/2023	v.1	

Purpose

ClinicalTrials.gov is a public registry developed by the National Library of Medicine as part of the Food and Drug Administration Modernization Act (FDAMA), further enhanced by the Food and Drug Administration Amendment Act (FDAAA). The registration of clinical trials on ClinicalTrials.gov fulfills ethical obligations to participants and the research community, facilitates reviews and analyses of research literature, provides information to potential participants and referring clinicians, reduces publication bias, helps others understand the context of study results, promotes efficient allocation of research funds, provides a public record of results, and assists Institutional Review Boards (IRBs) in determining the appropriateness of a research study[1]. There are a number of entities that require public registration of clinical trials, the public posting of results, and/or the public posting of informed consent forms (ICFs). Principal investigators may also voluntary register a clinical trial. Each entity has its own definition of a clinical trial and its own penalties for failure to register and/or post results and ICFs.

See ClinicalTrials.gov Guidance 705 to determine if a study requires registration and/or posting on ClinicalTrials.gov. Instructions are included in the Appendix.

Policy

1. The following new or ongoing research studies must be **registered** on ClinicalTrials.gov:
    a. Research studies meeting the FDAAA definition of an applicable clinical drug, biologic, or device trial that either were initiated after September 27, 2007, or initiated on or before that date and were still ongoing as of December 26, 2007, regardless of funding source (42CFR11);
    b. Research studies funded in whole or in part by the National Institutes of Health (NIH) initiated on or after January 18, 2017 meeting the NIH definition of a clinical trial;

[1] ClinicalTrials.gov

c. Research studies to be published in International Committee of Medical Journal Editors (ICMJE) member journals meeting the definition of a clinical trial per ICMJE, regardless of funding source; or

d. Research studies with a sponsor or grantor requirement to register on ClinicalTrials.gov (check the terms of your award)

Note: Clinical trials meeting the ICMJE definition of a clinical trial enrolling on or after January 1, 2019 must include a data sharing plan. *See ClinicalTrials.gov Guidance 705 Appendix for details regarding data sharing plans.*

2. When registration on ClinicalTrials.gov is required, this must occur **prior to the enrollment** of the first participant. A participant is considered enrolled after he/she/they or a legally authorized representative completes the informed consent process as defined by 14CFR1230.116/21CFR50.116.

3. The following new or ongoing research studies must publicly **post results** on ClinicalTrials.gov after the primary completion date, including a full study protocol and statistical analysis plan:

   a. Research studies meeting the FDAAA definition of an applicable clinical drug, biologic, or device trial that either were initiated after September 27, 2007, or initiated on or before that date and were still ongoing as of December 26, 2007, regardless of funding source;

   b. Research studies funded by the National Institutes of Health (NIH) initiated on or after January 18, 2017 meeting the NIH definition of a clinical trial; or

   c. Research studies with a sponsor or grantor requirement to post results on ClinicalTrials.gov (check the terms of your award)

4. Information/data elements posted on ClinicalTrials.gov must be updated throughout the course of the study as follows:

Data Element	**Deadline for Updating (not later than the specified date)**
Study Start Date	30 calendar days after the first subject is enrolled
Intervention Name(s)	30 calendar days after a nonproprietary name is established
Overall Recruitment Status	30 calendar days after a change in overall recruitment status
Individual Site Status	30 calendar days after a change in status of any individual site
IRB Status	30 calendar days after a change in IRB status
Primary Completion Date	30 calendar days after the clinical trial reaches its actual primary completion date The primary completion date is the date the final study participant was examined or received an intervention for the purpose of the final collection of data for the primary outcome.
Enrollment	At the time the primary completion date is changed to "actual," (see below) the actual number of participants enrolled must be submitted
Study Completion Date	30 calendar days after the trial reaches its actual study completion date (*not data analysis*)

	Study completion date is the date that the final study participant was examined or received an intervention for the purpose of the final collection of data for the primary and secondary outcome measures and adverse events.
Responsible Party, by Official Title	30 calendar days after a change in the responsible party or the official title of the responsible party
Responsible Party Contact Information	30 calendar days after a change in the responsible party or the contact information for the responsible party
Change in US FDA approval or clearance status	15 calendar days after a change in test article approval or clearance status has occurred
Record Verification Date	Records must be verified once per year (no less than once every 12 months)
Protocol Amendments	Following IRB approval of a protocol amendment/modification, if the protocol was amended in such a way that changes are communicated to human participants in the clinical trial, updates to any relevant clinical trial registration information data must be submitted no later than 30 calendar days following IRB approval. For multisite trials, the date of the first board approval for the amendment should be used.
Response to Comments from ClinicalTrials.gov	15 calendar days for registration comments 25 calendar days for results comments

Note: See 42CFR11 for additional posting requirements regarding expanded access (compassionate use) for patients with a serious/life threatening disease.

5. Voluntary registration or results posting must follow all applicable guidelines and deadlines listed above.
6. Once registered, a clinical trial cannot be deleted unless it is a duplicate registration.

	FDAAA	**NIH**	**ICMJE**
Mandate	Regulation	Policy	Policy
Registration Required	Yes	Yes	Yes
Registration deadline	Prior to enrollment of first subject*	Prior to enrollment of first subject*	Prior to enrollment of first subject*
Results Reporting Required	Yes	Yes	No
Dependent on Funding	No	Yes	No
Type of intervention	FDA-regulated products	All	All
Study Phase	Not Phase 0,1 Not device feasibility	All	All
Penalty	Civil monetary and criminal	Loss of funding	Publication rejection

*NASA Policy

7. Research studies meeting the Revised Common Rule (14CFR1230) definition of a clinical trial, supported by a Revised Common Rule Agency (such as NASA), approved by the IRB on or after January 21, 2019, must upload one, **unsigned** IRB-approved informed consent form (ICF) used to enroll participants on a publicly available Federal Web site established as a repository for such information (14CFR1230.116(h)).
    a. For studies that are also registered on Clinicaltrials.gov, and the ICF is written in the English language, that ICF must be posted on Clinicaltrials.gov.
    b. For studies that are not otherwise registered on Clinicaltrials.gov and/or there is not an English-language ICF, that ICF must be uploaded to a docket folder on Regulations.gov.
    c. For applicable studies that are part of an analog complement, the NASA IRB Chair and/or delegate will determine whether the individual study ICF or the complement ICF will be posted and by whom.
    d. For applicable studies that are part of a flight complement, the individual study ICF will be posted, *not the complement ICF.*

    The Revised Common Rule definition of a clinical trial may include certain social, behavioral, and educational research studies results (*See Guidance Document 705*). Informed consent forms must be posted once the study is closed to recruitment and 60 or fewer days have passed since the last study visit by any participant. If the study includes multiple informed consent forms, only one informed consent form must be uploaded. Note, if the Federal department or agency supporting or conducting the clinical trial determines that certain information should not be made publicly available on a Federal Web site, the Federal department or agency may permit or require redactions to the information posted. Note, the Federal department or agency supporting the study must approve a requested redaction before the redaction occurs. If you would like to request a redaction, please contact Marisa Covington, marisa.d.covington@nasa.gov.
8. Studies that fall under multiple categories above only need to be registered and/or have results posted to ClinicalTrials.gov once. Studies meeting the FDAAA, NIH, and/or ICJME definition of an Applicable Clinical Trial or clinical trial, also meeting the Revised Common Rule definition of a clinical trial, must follow all regulatory or policy mandates for registration, resulting posting, and informed consent posting.

Responsibilities

1. For studies meeting the FDAAA definition of an Applicable Clinical Trial, the NIH definition of a clinical trial, or the Revised Common rule definition of a clinical trial, the 'designated Responsible Party' is required to register and post results on ClinicalTrials.gov and/or upload the ICF to a public Federal Web site, where applicable (42CFR11).
2. Each Applicable Clinical Trial or clinical trial as defined in this policy must have one Responsible Party. Federal regulations specify that the sponsor of the clinical trial or Applicable Clinical Trial will be considered the Responsible Party unless and until a principal investigator has been designated the Responsible Party in accordance with 42CFR11.4(c)(2). NASA sponsored studies designate the PI of the clinical trial as the

Responsible Party. (See 2(a)(i) below for studies involving NASA astronauts as participants.) Additionally:

a. Specifically for a clinical trial being conducted under an investigational new drug application (IND) or investigational device exemption (IDE), the IND/IDE holder is considered to be the sponsor as defined in 42CFR11.10(a) regardless of clinical trial funding. For clinical trials not conducted under an IND or IDE, the sponsor would be identified as follows:

    i. Where the clinical trial is being conducted by an entity under a research assistance funding agreement such as a grant of sponsored research agreement, the funding recipient generally is considered to be the initiator of the clinical trial, and therefore, the sponsor;

        1. This applies to most HRP funded studies in which NASA astronauts are participants. In this scenario, the principal investigator is designated the Responsible Party.

        2. For studies involving NASA astronauts as participants funded by commercial companies, the commercial company is designated the Responsible Party.

    ii. Where the clinical trial is being conducted by an entity under a procurement funding agreement such as a contract, the party obtaining the goods or services for its direct benefit or use (the funder) generally is considered to be the initiator of the trial, and therefore, the sponsor, or

    iii. Where there is no funding agreement supporting the clinical trial, the person or entity who initiated the clinical trial by preparing and/or planning the clinical trial, and who has the appropriate authority and control over the clinical trial to carry out the responsibilities under section 402(j) of the Public Health Service Act is the sponsor.

For more information regarding the designation of a principal investigator as the Responsible Party or how responsibility reverts to the sponsor if a designated principal investigator is unable to fulfill the outlined requirements, please see 42CFR11.4(c)(2) and (c)(3), respectively.

3. <u>The Responsible Party must register and maintain clinical trials, review the content of the information uploaded to the registry for accuracy and completeness, and ensure all relevant timelines are followed.</u>

4. When an analog complement includes studies in which the FDAAA applicable clinical trial and/or NIH/ICMJE clinical trial definitions apply, the NASA IRB Chair and/or delegate will determine the responsible party(ies) and location of ICF language requirements on a case-by-case basis.

5. Penalties for failure to register a clinical trial and/or post results or informed consent forms may include civil or criminal judicial and/or civil monetary penalty actions, grant funding actions such as loss of funding, and/or publication rejection. Any Health and Human Service entity ay withhold current or future funding to organizations that are out of compliance.
6. If the Responsible Party relocates to another institution, he/she/they must ensure a transition of responsibilities for registration/posting.
7. It is the principal investigator's responsibility to indicate whether he/she/they intend to publish in an ICMJE member journal at the time of IRB initial submission. Failure to do so may result in publication rejection by ICMJE if registration requirements are not met.
8. Applicable Clinical Trials as defined by the FDAAA, regardless of funding, must include the language provided below in the informed consent form (language may not be altered):

   > "A description of this clinical trial will be available on http://www.ClinicalTrials.gov, as required by US law. This website will not include information that can identify you. At most, this website will include a summary of the study results. You can search this website at any time."

9. NIH funded clinical trials, that are not an intervention evaluating an FDA-regulated product, must include the language provided below in the informed consent form:

   > "A description of this clinical trial will be available on http://www.ClinicalTrials.gov. This website will not include information that can identify you. At most, this website will include a summary of the study results. You can search this website at any time."

   Note: NIH funded trials meeting the FDAAA definition of an applicable clinical trial (intervention evaluating an FDA-regulated product) ***must*** *use the FDAAA informed consent language provided above.*

10. Studies that meet the ICMJE definition of a clinical trial that are not an intervention evaluating an FDA-regulated product, nor a clinical trial funded by NIH may include the following language:

    > "A description of this clinical trial will be available on http://www.ClinicalTrials.gov. This website will not include information that can identify you. You can search this website at any time."

    Note: Studies to be published in ICMJE that also meet the FDAAA definition of an applicable clinical trial ***must*** *use the FDAAA informed consent language provided above.*

11. Studies that **only** meet the Revised Common Rule definition of a clinical trial may include the language provided below in the informed consent form:

    > "A blank informed consent form will be made available on [ClinicalTrials.gov/Regulations.gov]. This website will not include any information that can identify you. You can search this website at any time."

NASA IRB Office:

1. During pre-review of the IRB submission, the NASA IRB staff will make the final determination and confirm with the NASA IRB Chair or his/her/their designee as to whether the proposed research meets the definitions of an Applicable Clinical Trial and/or clinical trial and which regulations/policies apply.
2. If the proposed research requires registration or posting on ClinicalTrials.gov or Regulations.gov, the NASA IRB staff will:
    a. Inform the principal investigator that registration must occur before the first participant is enrolled, and
    b. Ensure the language provided above is included in the informed consent form(s) where applicable.

Definitions

Applicable clinical device trial (42CFR11.10(a)) – A prospective clinical study of health outcomes comparing an intervention with a device product subject to section 510(k), 515, or 520(m) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 360(k), 21 U.S.C. 360e, 21 U.S.C. 360j(m)) against a control in human subjects (other than a small clinical trial to determine the feasibility of a device product, or a clinical trial to test prototype device products where the primary outcome measure relates to feasibility and not to health outcomes);

A pediatric postmarket surveillance of a device product as required under section 522 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 3601); or

A clinical trial of a combination product with a device primary mode of action under 21 CFR part 3, provided that it meets all other criteria of the definition under this part.

Applicable clinical drug trial (42CFR11.10(a)) – a controlled clinical investigation, other than a phase 1 clinical investigation, of a drug product subject to section 505 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 355) or a biological product subject to section 351 of the Public Health Service Act (42 U.S.C. 262), where “clinical investigation” has the meaning given in 21 CFR 312.3 and “phase 1” has the meaning given in 21 CFR 312.21. A clinical trial of a combination product with a drug primary mode of action under 21 CFR part 3 is also an applicable drug clinical trial, provided that it meets all other criteria of the definition under this part.

Clinical investigation (21CFR50.3(c)) – any experiment that involves a test article and one or more human subjects and that is either subject to requirements for prior submission to the Food and Drug Administration under section 505(i) or 520(g) of the act, or that is not subject to the requirements for prior submission to the Food and Drug Administration under these sections of the act, but the results of which are intended to be submitted later to, or held for inspection by, the Food and Drug Administration as part of an application for a research or marketing permit.

Clinical Trial (ICMJE) – any research project that prospectively assigns people or a group of people to an intervention, with or without concurrent comparison or control groups, to study the relationship between a health-related intervention *and* a health outcome.

Clinical Trial (NIH) – a research study in which one or more human subjects are prospectively assigned to one or more interventions (which may include placebo or other control) to evaluate the effects o those interventions on health-related biomedical or behavioral outcomes.

Clinical Trial (Revised Common Rule, 14CFR1230.102(b)) – a research study in which one or more human subjects are prospectively assigned to one or more interventions (which may include placebo or other control) to evaluate the effects of the interventions on biomedical or behavioral health-related outcomes.

Collaborator (ClinicalTrials.Gov) -- An organization providing support for a project by way of funding, design, implementation, data analysis or reporting.

Enrollment – a study participant is considered enrolled in a research study after he/she/they or a legally authorized representative completes the informed consent process as defined by 14CFR1230/21CFR50. Those screened to determine eligibility, but do not participate in the study, are not considered enrolled.

Expanded access – “compassionate use” protocols where a patient with a serious/life threatening disease is given access to an investigational product.

Health-related biomedical or behavioral outcomes (NIH) – pre-specified goal(s) or condition(s) that reflect the effect of one or more interventions on human subjects’ biomedical or behavioral status or quality of life. Examples include:

- Positive or negative changes to physiological or biological parameters (e.g. improvement of lung capacity, gene expression);

- Positive or negative changes to psychological or neurodevelopmental parameters (e.g. mood management intervention for smokers, reading comprehension and/or information retention);
- Positive or negative changes to disease processes;
- Positive or negative changes to health-related behaviors; and
- Positive or negative changes to quality of life

Health-related Intervention (ICMJE) – an intervention used to modify a biomedical or health-related outcome (e.g. drugs, surgical procedures, devices, behavioral treatments, educational programs, dietary interventions, quality improvement interventions, and process-of-care changes).

Health outcomes (ICMJE) – any biomedical or health-related measures obtained in patients or participants, including pharmacokinetic measures and adverse events.

Individual site status – the status of the clinical trial at a single study site (e.g. recruiting, active, completed).

Institutional Review Board (IRB) status – the determination status of the IRB protocol (approved, suspended, disapproved, etc.)

Intervention (NIH) – a manipulation of the subject or subject's environment for the purpose of modifying one or more health-related biomedical or behavioral processes and/or endpoints. Examples include:

- Drugs/small molecules/compounds;
- Biologics
- Devices
- Procedures (e.g. surgical techniques);
- Delivery systems (telemedicine, face to face interviews);
- Strategies to change health-related behavior (e.g. diet, cognitive therapy, exercise, development of new habits);
- Treatment strategies;
- Prevention strategies; and
- Diagnostic strategies

Interventional Study – a study in which participants are assigned prospectively to an intervention or interventions according to a protocol to evaluate the effect of the intervention(s) on biomedical or other health-related outcomes (42CFR11.10(a))

Phase 1 clinical investigation (21CFR312.21) – initial introduction of an investigational new drug into humans. Phase 1 studies are typically closely monitored and may be conducted in patients or normal volunteer subjects.

These studies are designed to determine the metabolism and pharmacologic actions of the drug in humans, the side effects associated with increasing doses, an, if possible, to gain early evidence on effectiveness. During phase 1, sufficient information about the drug's pharmacokinetics and pharmacological effects should be obtained to permit the design of well-controlled, scientifically valid, Phase 2 studies. Phase 1 studies also include studies of drug metabolism, structure-activity relationships, and mechanism of action in humans, as well as studies in which investigational drugs are used as research tools to explore biological phenomena or disease processes.

Pre-clinical (Phase 0) investigation – a study designed to be conducted prior to phase 1 and has very limited human exposure with participants only receiving sub-therapeutic doses

Primary Completion Date - the date the final study participant was examined or received an intervention for the purpose of the final collection of data for the primary outcome.

Prospectively assigned (NIH) – a pre-defined process (e.g. randomization) specified in an approved protocol that stipulates the assignment of research subjects (individually or in clusters) to one or more arms (e.g. intervention, placebo, or other control) of a clinical trial

Record verification date – the date on which the responsible party last verified the clinical study information in the entire ClinicalTrials.gov record for the clinical study, even if no additional or updated information is being submitted.

Research activities – activities that include participant enrollment, recruitment, informed consent, data collection, data analysis/storage of identifiable/attributable data, and the sharing of identifiable/attributable data

Recruitment status – the recruitment status for the clinical study as a whole, based upon recruitment at of the individual sites (e.g. not yet recruiting, recruiting, completed). If at least one facility in a multi-site clinical trial has a status of "recruiting" then the overall recruitment status should be "recruiting."

Responsible Party - the sponsor of the clinical trial or applicable clinical trial unless and until a principal investigator has been designated the Responsible Party in accordance with 42CFR11.4(c)(2)

Sponsor – a person who initiates a clinical investigation, but who does not actually conduct the investigation, i.e., the test article is administered or dispensed to or used involving, a subject under the immediate direction of another individual. A person other than an individual (e.g., corporation or agency) that uses one or

more of its own employees to conduct a clinical investigation it has initiated is considered to be a sponsor (not a sponsor-investigator), and the employees are considered to be investigators.

Sponsor-investigator – an individual who both initiates and actually conducts, alone or with others, a clinical investigation, i.e., under whose immediate direction the test article is administered or dispensed to, or used involving, a subject. The term does not include any person other than an individual, e.g., corporation or agency.

Study initiation – the date on which the first human subject is enrolled

Study completion date – the date that the final study participant was examined or received an intervention for the purpose of the final collection of data for the primary and secondary outcome measures and adverse events.

References

ClinicalTrials.gov
ICMJE.org
FDAAA
FDAMA
14CFR1230/21CFR50
21CFR312
Grants.nih.gov
42CFR11
Collaborative Institute Training Initiative

Version #	Version Notes:	Originated By:	Approved By:	Date Approved:
v.1	Original, Reviewed by M. Covington	J. Kisenwether	M. Covington	01Feb2023